

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: August 20, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

#		
101	Douglas vs. Gordon Lane Healthcare, LLC, 23-01330147	Plaintiffs Ellen Douglas, individually and as successor-in-interest to Bruce Douglas; Megan Douglas; and Cameron Douglas (collectively, "Plaintiffs"), move for an order compelling the person most knowledgeable ("PMK") for Defendant, Sun Mar Management Services ("Sun Mar"), to appear and testify at deposition and to produce documents at deposition as specified in the deposition notice served on March 19, 2026. Plaintiffs also move for an order awarding monetary sanction against Sun Mar, in the sum of \$1,560. Plaintiffs contend that Sun Mar's PMK appeared for and testified at deposition on April 8, 2026, but refused to produce any of the materials or documents sought by

Plaintiffs as specified in the deposition notice served on March 19, 2026 (the "deposition notice"). Plaintiffs also contend that Sun Mar's subsequent Supplemental Response to 10 of the 30 requests for production on July 9, 2026 does not cure the prior failure to provide documents, and that Sun Mar did not provide any response at all to 20 of the requests, which are at issue in this motion. Plaintiffs additionally contend that while Sun Mar objected to the initial deposition notice, Sun Mar did not serve any objections to the operative deposition notice, such that it waived any error or irregularity in that notice, and that the objections to the prior notice do not transfer to the subsequent operative deposition notice, but that even assuming Sun Mar's boilerplate objections were properly asserted, the objections lack merit. Lastly, Plaintiffs contend that the imposition of monetary sanctions is warranted for the misuse of the discovery process in failing to respond or to submit to an authorized method of discovery.

Defendants, Gordon Lane Healthcare, LLC; Anaheim Healthcare Center, LLC; and Sun Mar (collectively, "Defendants") have filed an opposition. Defendants contend that Sun Mar timely objected to Plaintiffs' deposition notice on March 13, 2026, as the deposition topics and requests for production did not change, that objections need not be revived by Defendant, and that Plaintiffs produce no authority to support the position that new objections were required to be served in response to the slightly amended deposition notice. Defendants also contend that neither Code of Civil Procedure section 2025.410(a) or Section 2025.450(a) state that objections that are waived. Defendants additionally contend that Plaintiffs have failed to meet the burden of showing that the documents sought are both relevant to the subject matter of the action and that specific facts justify discovery, especially where Defendant has attempted to find an agreeable middle ground with a Stipulated Protective Order during meet and confer efforts, and that Sun Mar's objections are appropriate and valid. Defendants further contend that Plaintiffs' motion is a misuse of the discovery process, and that the imposition of monetary sanctions here would be unjust such that Plaintiffs' request for monetary sanctions should be denied.

Requests for Production

Here, Plaintiffs served the operative deposition notice on March 19, 2026, with the deposition set for April 8, 2026. (Schneberg Decl., ¶¶ 2-4, Ex. A; ROA 136, Declaration of Laura K. Sitar ("Sitar Decl."), ¶ 3.) Sun Mar did not object to this operative deposition notice, nor did it file a motion to stay or question or a motion for protective order with respect to the requests for production of documents. (Schneberg Decl., ¶¶ 6-7.)

		Prior to the operative deposition notice, Plaintiffs' counsel served an earlier deposition notice on March 5, 2026, with a deposition set for March 19, 2026. (Schneberg Decl., ¶¶ 34-35, Ex. E.) On March 13, 2026, Sun Mar served a written objection to this earlier notice, stating that its counsel and deponent were unavailable on that date and asserted objections to the deposition categories and document requests. (Schneberg Decl., ¶¶ 36-37, Ex. F; Sitar Decl., ¶ 4, Ex. A.) The question is whether Sun Mar's objection to the initial deposition notice may be considered where Sun Mar did not serve any objection to the subsequent, operative deposition notice where both deposition notices contain the same requests for production of documents. While Sun Mar contends that its response to the initial deposition notice is effective as an objection to the subsequent, operative deposition notice, and that it is not required to serve objections to the operative deposition notice because it contained the same requests for production as the initial deposition notice, Sun Mar cites to no authority for this proposition. Sun Mar also cites to no authority for the proposition that the objections referenced in Code of Civil Procedure section 2025.410 do not include objections to the requests based on relevance or other substantive objections. On the other hand, Plaintiffs cite to no authority which requires a party to serve an objection as to each amended deposition notice which involves the same requests for production of documents, or which supports that the failure to do so results in a waiver of objections. Logically, it would appear that Sun Mar would be required to serve an objection as to the operative deposition notice. However, as there is no authority cited supporting that Sun Mar's prior objections to the same requests for production could not be maintained, the Court will consider them to the extent that Sun Mar seeks to justify any objection in opposition to this motion. The 20 document requests at issue to which Sun Mar has provided no supplemental response include Request Nos. 1, 4 to 13, 16 to 19, 24, 25, and 28-30. With regards to good cause, Plaintiffs' counsel provides that each of the requests at issue is directed at obtaining information necessary for Plaintiffs' full and fair evaluation of the facts, liabilities. (Schneberg Decl., ¶ 17.) In addition, Plaintiffs show that good cause exists for each of the requests at issue as the documents sought is relevant to the claims at issue as the documents are either themselves admissible or
--	--	---

		appear reasonably calculated to lead to the discovery of admissible evidence. (Schneberg Decl., ¶¶ 18-33.) To oppose the production of document in response to the requests at issue, Sun Mar submitted an opposition as well as an unauthorized opposition separate statement. Nevertheless the Court considers the opposition separate statement. Sun Mar fails to justify any objection made to Request Nos. 1, 4 to 13, 24, 25, and 30. Additionally, “[i]f only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Code Civ. Proc. § 2031.240(a).) To the extent that Sun Mar’s response to the initial deposition notice provided that documents would be produced, none have been produced in response to the requests at issue. To the extent that Sun Mar is withholding documents to any of the requests at issue based on objections, the response to the initial deposition notice does not “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.” (Code Civ. Proc. § 2031.240(b)(1).) To the extent that Sun Mar claims that the documents sought are in the custody or control of Gordon Lane Healthcare, LLC and/or Anaheim Healthcare, LLC, Sun Mar may provide a proper response. Sun Mar assertions that it has no ownership interest in Gordon Lane Healthcare, LLC or Anaheim Healthcare, LLC, and does not manage either entity, but simply shares common ownership with each facility and provides consulting services to each facility, is not supported by any evidence, and in any event, may be stated in a response. For example, a response to a request for production includes the following mandate: A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling, shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item. (Code Civ. Proc. § 2031.230.)
--	--	---

		Request Nos. 16 to 19 are overbroad in scope as they do not clearly state the subject matter of the documents sought. These requests are narrowed to documents which pertain to the care and treatment of Bruce Douglas during the residence of Bruce Douglas at Gordan Lane Healthcare, LLC and Anaheim Healthcare Center, LLC. Request No. 28 is vague, but is clarified to mean website information made available to the public by Gordon Lane Healthcare, LLC during Bruce Douglas's residence. Request No. 29 is vague, but is clarified to mean website information made available to the public by Anaheim Healthcare Center, LLC during Bruce Douglas's residence. <i>Deposition</i> Plaintiff requests a second deposition of the PMK of Sun Mar, but fails to cite to any authority for a subsequent deposition. Nevertheless, Code of Civil Procedure section 2025.290 provides that an examination of a witness shall be limited to seven hours of total testimony, but this limitation does not apply to any deposition of a person who is designated as the most qualified person to be deposed under Section 2025.230. (Code Civ. Proc. § 2025.290(b)(5).) Based on the foregoing, Plaintiffs' motion to compel a second deposition of the PMK of Sun Mar is GRANTED. The deposition is to be conducted within 30 days, on a mutually agreeable date for all parties. Plaintiffs' motion to compel response and production of documents in response to Request Nos. 1, 4 to 13, 16 to 19, 24, 25, and 28-30 attached to the deposition notice is GRANTED. Sun Mar to provide a response and to produce all responsive documents at least 10 days before the date set for the subsequent deposition of Sun Mar's PMK. <i>Monetary Sanctions</i> If a motion under Code of Civil Procedure section 2025.450(a) is granted, it is mandatory for the court to impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2025.450(g).) Plaintiffs' request for monetary sanctions against Sun Mar in the amount of \$1,560 is GRANTED. (Schneberg Decl., ¶¶ 40-45.) Sun Mar to pay said monetary sanction in the amount of \$1,560 within 30 days. Sun Mar fails to show that it acted with substantial justification in failing to serve any objection to the operative
--	--	---

		deposition notice and failure provide any supplemental response to the subject requests. <i>Plaintiffs to give notice.</i>
102	Daniels vs. Balderas, 25-01515105	<i>Off-calendar.</i>
103	Gonzalez vs. The Tjx Companies Inc, 26-01544831	Defendant Thomasina Renee Gagnon ("Defendant") demurs to the Complaint of plaintiff Otto Perez Gonzalez ("Plaintiff"). Defendant argues the claim for punitive damages and supporting allegations must be stricken because the allegations of malice and oppression are insufficient, unsupported by facts, and vague and uncertain. Plaintiff's action arises out of a motor vehicle collision. Plaintiff alleges that Defendant was traveling at a high rate of speed while using a cell phone when Defendant's vehicle crashed into Plaintiff's vehicle. Plaintiff further alleges that Defendant acted with knowledge that probable serious injury to others would result in conscious disregard for the safety of others. These allegations are not vague or incomprehensible. Thus, the Demurrer for uncertainty is OVERRULED. (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Defendant's argument that the allegations are insufficient to support a claim for punitive damages is not a proper ground for a demurrer, as it does not go to whether any of the asserted causes of action state sufficient facts or any of the other grounds that may be raised in a demurrer. (See Code Civ. Proc., § 430.10.) Because Defendant is attacking a remedy rather than an entire cause of action, the argument should be raised in a motion to strike. Based on the above, the Demurrer is OVERRULED in its entirety. Defendant to file an answer within 20 days. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
104	Zavala vs. Becker, 24-01387754	Defendant Karl W. Becker ("Defendant") moves to compel plaintiff Regina M. Zavala ("Plaintiff") to serve further responses to Defendant's Special Interrogatories, Set Two, and imposing monetary sanctions against Plaintiff in the amount of \$3,537.50.

		In response to Nos. 28-32, 34, and 41-42, which ask Plaintiff to provide facts or identify documents that support her affirmative defenses or claims for damages, Plaintiff responded with objections and reference to Code of Civil Procedure section 2030.210(a)(2). Plaintiff's responses indicate that the writings from which the responses could be derived include the Complaint, Plaintiff's Answer to Defendant's Cross-Complaint, and other documents that are in Defendant's possession and custody. Section 2030.230 provides, in relevant part: "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained." Here, Nos. 28-32, 34, and 41-42 do not necessitate the preparation or making of a compilation, abstract, audit, or summary of or from documents. For example, No. 28 asks Plaintiff to state all facts in support of her first affirmative defense for fraud. This interrogatory is not asking Plaintiff to provide a summary or abstract, or to compile information that can be found throughout several documents into one comprehensible compilation. Rather, it is asking Plaintiff to provide the facts upon which she relies to assert her affirmative defense. Plaintiff directs Defendant to documents such as the pleadings, correspondence from Defendant's prior counsel, and other documents filed in a separate case concerning an elder abuse restraining order but those do not appear to be documents from which the facts upon which Plaintiff relies may be derived or ascertained and, even if they were, it would be impossible for Defendant to determine which facts contained in the documents Plaintiff believes supports her affirmative defense and which do not. Defendant is entitled to ask for the facts and documents in support of what it is that Plaintiff is contending and Plaintiff's responses fail to provide that information. Thus, the Court finds Plaintiff's reliance on section 2030.230 to be improper and further responses to be warranted. Nos. 36-40 ask Plaintiff to provide information regarding healthcare providers she has visited for injuries sustained in connection with her intentional infliction of emotional distress cause of action, medical expenses and how they were calculated, sources of payments, and future medical expenses. In response, Plaintiff asserted objections based on privacy, relevance, and premature expert witness disclosure.
--	--	--

		A claim for intentional infliction of emotional distress requires a showing of a plaintiff's severe suffering or extreme emotional distress. (<i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 1001.) By asserting such a claim, Plaintiff has tendered her mental and emotional condition in this action and the interrogatories are limited to information relating to the emotional distress injuries claimed by Plaintiff. That information is material to the merit of Plaintiff's intentional infliction of emotional distress claim. Further, these interrogatories do not request any information that could fall under the umbrella of premature expert witness disclosure. Defendant is merely asking whether Plaintiff received care from any healthcare providers for her claimed severe emotional distress and, if so, the amount of medical expenses incurred or being claimed by her, none of which requires expert testimony. Thus, Plaintiff's privacy, relevance, and expert witness objections lack merit. The Court notes that in response to No. 36, Plaintiff asserts that she is not yet eligible for Medicare and has no private insurance to which she might avail herself to see a healthcare provider since the date of the incident. This response suggests that Plaintiff has not received any services from healthcare providers in connection with her intentional infliction of emotional distress claim. If so, Plaintiff is required to state the same in a straightforward and direct manner. For the reasons stated above, the Court finds further responses to Nos. 36-40 to be warranted as well. In light of the above, the Motion to Compel Further Responses is GRANTED. Plaintiff is ORDERED to serve further responses within 20 days of the date of this order. The Court finds Plaintiff's failure to provide sufficient responses was without substantial justification. Thus, Defendant's request for monetary sanctions is GRANTED in the amount of \$1,500.00. (Code Civ. Proc., § 2030.300(d).) Sanctions to be paid within 30 days of the date of this order. <i>Moving party to give notice.</i>
105	Segal vs. Tesla, Inc., 26-01538545	Defendant Tesla Inc. ("Tesla") will move the court to set aside the Default that was entered against it on June 5, 2026. Here, the Declaration of Attorney Suard provides, "Due to an inadvertent error, the deadline for TESLA's responsive pleading passed, without TESLA filing any responsive pleading to Plaintiff's summons and complaint. Due to this error, the deadline for responsive pleading was not calendared and went unnoticed." Notably, no person from Tesla filed a declaration, and Suard does not have personal knowledge about why Tesla failed to timely submit the case

		to counsel. The default was entered on 6/5/2026. Thereafter, on 6/11/2026 Theta Law Firm was retained and has attempted to set aside the default. Id.¶7, 13. This motion was filed on 7/15/2026. Despite the deficiencies in the declaration, where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default and letting the case go to trial on the merits, "very slight evidence will be required to justify a court in setting aside the default." [<i>Elston v. City of Turlock</i> (1985) 38 C3d 227, 233.] As such, the Court exercises its discretion and GRANTS the unopposed Motion. No sanctions. Proposed Answer to be separately filed within 20 days. The Case Management Conference is set for October 22, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
106	Sea Purity, LLC vs. Four Thirteen, LLC, 22-01290692	<u>Sea Purity</u> Plaintiff Sea Purity, LLC ("Plaintiff") seeks an order enforcing the Parties' Settlement Agreement and for entry of judgment against Defendants Four Thirteen, LLC, Joseph Gagliano; and Tracy Norton, individually and as Trustee of the Pelican Trust. The Court notes that there are additional Defendants in this action, including Jay Rogers, who are not named in the proposed judgment. Code of Civil Procedure section 664.6(a) states: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." "A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.]" (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.)

Code of Civil Procedure section 664.6 thus provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.) “The statutory procedure for enforcing settlement agreements under section 664.6 is not exclusive. It is merely an expeditious, valid alternative statutorily created.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.) Thus, “[t]he power of the trial court under Code of Civil Procedure section 664.6 . . . is extremely limited.” (*Hernandez v. Board of Education* (2004) 126 Cal.App.4th 1161, 1176 [emphasis added]).

Here, Plaintiff seeks an order against the aforementioned Defendants, jointly and severally, “in the amount of \$3,248,978.39, plus pre-judgment interest at the rate of 10% per annum accrued from the date of October 22, 2025 until entry of judgment.” The proposed judgment also provides for post-judgment interest and costs of enforcement.

On April 9, 2024, the Court signed and entered an order, pursuant stipulation of the parties, retaining jurisdiction to enforce the Settlement Agreement. (ROA 335.)

However, the parties are in dispute about what constitutes the settlement agreement. They agree that a written Settlement Agreement signed by all parties was entered into on March 22, 2024 (Hayden Decl., ¶4, Exhs. 1-2.) Under the Settlement Agreement, Four Thirteen was to pay Plaintiff \$3,248,978.39 on or before September 22, 2025. (Hayden Decl., Exh. 1 at ¶ 1.1(a).) The Settlement Agreement provides that if the amount is not paid by September 22, 2025, judgment shall be entered in the Sea Purity Action for Sea Purity for the unpaid amount jointly and severally against Four Thirteen, Gagliano, Norton Individually and Norton as Trustee. (Id. at ¶ 1.1(c).)

When Four Thirteen failed to pay the amounts due by the September 22, 2025 deadline, the parties entered into three subsequent “Letter Agreements,” each extending the deadline further. (Hayden Decl., Exhs. 3-5.) In each of these Letter Agreements, Plaintiff agreed not to seek judgment, and Sea Purity agreed to pay interest at the rate of 10% plus a fee to cover legal fees for the extension period. (Ibid.)

In December 2025, with the settlement amount still not having been paid, the parties executed an “Amendment to Settlement Agreement.” (Hayden Decl., ¶29, Exh. 6.) Notably, however, Defendant Jay Rogers was not a signatory to the Amendment to Settlement Agreement. This was expressly addressed in Par. 7.

The Amendment to Settlement Agreement purports to revise the payment terms of the Settlement Agreement by providing that the funds will be paid to Plaintiff by way of Letter of Credit. (Hayden Decl, Exh. 6 at ¶ 2.)

In Plaintiff's opening brief, Plaintiff contends that the Amendment to Settlement Agreement is not valid because it was not signed by Jay Rogers, and the original Settlement Agreement expressly provides that "This Settlement Agreement may only be amended in a writing, signed by duly authorized representatives of all Parties." (Hayden Decl, Exh. 1 at ¶ 8.6.)

Plaintiff further argues that "Rogers is an individual defendant in the underlying action and therefore necessarily has an interest in the disposition of the case, including enforcement of the Settlement Agreement. This is clearly why Rogers was required to and did sign the Settlement Agreement – not only as a representative of certain entity defendants, but as an individual defendant himself. Even if he is not individually required to make payment under the Settlement Agreement, his interest in the enforcement of the Settlement Agreement and ultimate disposition of this case remains material." (Mtn at 14:24-15:1.)

In opposition, Defendants contend that the Amendment to Settlement Agreement is valid and enforceable, and that Jay Rogers' signature on the Amendment was not necessary. Defendants further contend that they have complied with the terms of the Amendment to Settlement Agreement by initiating a Letter of Credit.

As noted above, Section 664.6 is only intended to provide a summary procedure, and is extremely limited in its application. The Court is not able to determine, based on the evidence provided, what Jay Rogers' interest is in the settlement, and therefore declines to make a determination at this juncture as to the validity of the Amendment to Settlement Agreement. Further, the Court questions the effect of the three Letters of Extension on the terms of the Settlement Agreement and Amendment to the Settlement Agreement, insofar as it appears that Four Thirteen has already paid some prejudgment interest to Plaintiff.

Accordingly, the motion is DENIED.

Plaintiff to give notice.

107	ZeroCarbon Offsets SPV I, L.P. vs. Four Thirteen, LLC, 22-01290699	<u>Zero Carbon</u> Plaintiff ZeroCarbon Offsets SPV I, LLP ("Plaintiff") seeks an order enforcing the Parties' Settlement Agreement and for entry of judgment against Defendant Four Thirteen, LLC. The Court notes that there are additional Defendants in this action, including Jay Rogers, who are not named in the proposed judgment. Code of Civil Procedure section 664.6(a) states: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." "A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.]" (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) Code of Civil Procedure section 664.6 thus provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) "The statutory procedure for enforcing settlement agreements under section 664.6 is not exclusive. It is merely an expeditious, valid alternative statutorily created." (<i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 790.) Thus, "[t]he power of the trial court under Code of Civil Procedure section 664.6 . . . is <i>extremely limited</i>." (<i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1176 [<i>emphasis added</i>]). Here, Plaintiff seeks an order against the aforementioned Defendants, jointly and severally, "in the amount of \$3,248,978.39, plus pre-judgment interest at the rate of 10% per annum accrued from the date of October 22, 2025 until entry of judgment." The proposed judgment also provides for post-judgment interest and costs of enforcement.
-----	--	--

		On April 9, 2024, the Court signed and entered an order, pursuant stipulation of the parties, retaining jurisdiction to enforce the Settlement Agreement. (ROA 324.) However, the parties are in dispute about what constitutes the settlement agreement. They agree that a written Settlement Agreement signed by all parties was entered into on March 22, 2024 (Hayden Decl., ¶4, Exhs. 1-2.) Under the Settlement Agreement, Four Thirteen was to pay Plaintiff \$3,248,978.39 on or before September 22, 2025. (Hayden Decl., Exh. 1 at ¶ 1.1(a).) The Settlement Agreement provides that if the amount is not paid by September 22, 2025, judgment shall be entered in the Sea Purity Action for Sea Purity for the unpaid amount jointly and severally against Four Thirteen, Gagliano, Norton Individually and Norton as Trustee. (Id. at ¶ 1.1(c).) When Four Thirteen failed to pay the amounts due by the September 22, 2025 deadline, the parties entered into three subsequent "Letter Agreements," each extending the deadline further. (Hayden Decl., Exhs. 3-5.) In each of these Letter Agreements, Plaintiff agreed not to seek judgment, and Sea Purity agreed to pay interest at the rate of 10% plus a fee to cover legal fees for the extension period. (Ibid.) In December 2025, with the settlement amount still not having been paid, the parties executed an "Amendment to Settlement Agreement." (Hayden Decl., ¶29, Exh. 6.) Notably, however, Defendant Jay Rogers was not a signatory to the Amendment to Settlement Agreement. This was expressly addressed in Par. 7. The Amendment to Settlement Agreement purports to revise the payment terms of the Settlement Agreement by providing that the funds will be paid to Plaintiff by way of Letter of Credit. (Hayden Decl, Exh. 6 at ¶ 2.) In Plaintiff's opening brief, Plaintiff contends that the Amendment to Settlement Agreement is not valid because it was not signed by Jay Rogers, and the original Settlement Agreement expressly provides that "This Settlement Agreement may only be amended in a writing, signed by duly authorized representatives of all Parties." (Hayden Decl, Exh. 1 at ¶ 8.6.) Plaintiff further argues that "Rogers is an individual defendant in the underlying action and therefore necessarily has an interest in the disposition of the case, including enforcement of the Settlement Agreement. This is clearly why Rogers was required to and did sign the Settlement Agreement – not only as a representative of certain entity defendants, but as an individual defendant himself. Even if he is not individually required to make payment under the Settlement Agreement,
--	--	--

		his interest in the enforcement of the Settlement Agreement and ultimate disposition of this case remains material.” (Mtn at 14:24-15:1.) In opposition, Defendants contend that the Amendment to Settlement Agreement is valid and enforceable, and that Jay Rogers’ signature on the Amendment was not necessary. Defendants further contend that they have complied with the terms of the Amendment to Settlement Agreement by initiating a Letter of Credit. As noted above, Section 664.6 is only intended to provide a summary procedure, and is extremely limited in its application. The Court is not able to determine, based on the evidence provided, what Jay Rogers’ interest is in the settlement, and therefore declines to make a determination at this juncture as to the validity of the Amendment to Settlement Agreement. Further, the Court questions the effect of the three Letters of Extension on the terms of the Settlement Agreement and Amendment to the Settlement Agreement, insofar as it appears that Four Thirteen has already paid some prejudgment interest to Plaintiff. Accordingly, the motion is DENIED. <i>Plaintiff to give notice.</i>
108	Premier Financial Services, LLC vs. 520 Capital, LLC., 25-01534382	Plaintiff Premier Financial Services, LLC’s Application for Writ of Possession against Defendant David Kent Riemann aka Dave Kent Riemann for the 2012 Mercedes Benz SLS AMG Roadster, VIN WDDRK7HA0CA009440 (the “Vehicle”) is GRANTED. The Court ORDERS Defendant David Kent Riemann aka Dave Kent Riemann to turn over to Plaintiff the Vehicle which is believed to be located at 17 Cornflower Street, Coto De Caza, CA 92679 within 20 days. The failure to turn over the Vehicle to Plaintiff may subject Defendant to being held in contempt of court. The Court waives the requirement for Plaintiff to post an undertaking since the amount owed is higher than the estimated value of the Vehicle. Defendant’s re-delivery bond shall be \$131,830.85. The Case management Conference is continued to 9/17/2026 at 1:30 p.m. <i>Moving Party is to give notice.</i>
109	Stellantis Financial Services, Inc. vs. Nurkashev, 26-01538453	<i>Motion off-calendar.</i>

110	Clay vs. Delgadillo, 23-01359983	Plaintiff/Cross-Defendant, Jerome Anthony Clay, Jr. ("Clay"), and Cross-Defendant, The Law Office of Jerome A. Clay, A.P.C. ("Clay Law Office") (collectively, "Cross-Defendants") move for an order quashing the Deposition Subpoena for Production of Business Records issued by Defendants/Cross-Complainants, Frank Delgadillo, Jr.; Dessau, Inc.; and M86CEM, LLC (collectively, "Cross-Complainants") to Wells Fargo National Association on January 8, 2026 (the "Deposition Subpoena"). Cross-Defendants bring the subject motion pursuant to Code of Civil Procedure sections 1987.1 Cross-Defendants contend that the Deposition Subpoena consists of 27 document requests which seek documents relating to several Wells Fargo accounts tied to Clay's personal CLAY J PREFERRED CHECKING xxxxxx2531, Law Office operating LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821, and IOLTA xxxxxx5122 accounts, as well as internal bank records reflecting transactions and account activity. Cross-Defendants contend these requests violate Cross-Defendants' constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential personal and law practice financial information and the attorney client privilege and work product doctrine. Cross-Defendants additionally assert that the Deposition Subpoena is overbroad, unduly burdensome, and not proportional to the needs of the case. Cross-Defendants thus contend that the Court should exercise its discretion under section 1987.1 to quash the Subpoena in its entirety, or alternatively, enter a protective order to ensure any compelled discovery is narrowly tailored, proportionate, and subject to confidentiality safeguards. Defendants/Cross-Complainants, M86CHEM, LLC; Dessau, Inc., and Frank Delgadillo ("Delgadillo Jr.") (collectively, "Cross-Complainants") contend that the motion should be denied as the Deposition Subpoena is narrowly tailored, directly relevant to the claims and defenses, and supported by bank records produced in prior discovery. Cross-Complainants contend that the information sought in the Deposition Subpoena is specific to the instant wire transfer of \$2,640,000 from Meiwa Engineering in Japan to the IOLTA of Clay Law Office as fiduciary for M86CHEM, LLC, the legal grantor, secondary beneficiary, and only "client" of the client-trust fund, and that the additional requests seek records showing whether those funds were transferred to authorized recipients or to persons and accounts outside the permitted disbursement instructions. Cross-Complainants contend that the document requests do not violate Cross-Defendants right to privacy as the records sought are directly relevant to Cross-Complainants' claims of fraud, conversion, and breach of fiduciary duty that goes to the very heart of the asserted
-----	----------------------------------	---

		fee dispute. Cross-Complainants also assert that the claims of attorney-client privilege and work product have no merit. Code of Civil Procedure section 1987.1 applies to a deposition subpoena. (Code Civ. Proc. § 2020.030.) Code of Civil Procedure section 1987.1 provides, in pertinent part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc. § 1987.1, subds. (a)-(b).) There is no showing that the instant motion to quash has been “reasonably made.” There has been no attempt to resolve the parties’ dispute as to the requests for production in the Deposition Subpoena. Despite this, the Court will address the merits of the motion. As a threshold matter, Cross-Complainants withdraw Request Nos. 18 and 24 as premature. <i>Requests in Subject Deposition Subpoena</i> The Deposition Subpoena includes 27 requests. The following 25 requests remain at issue: 1. All DOCUMENTS and COMMUNICATIONS reflecting any instructions, directives and/or agreements accompanied with the IOLTA account at WELLS FARGO ACCOUNT ending in 5122 for the benefit of the LAW OFFICE OF JEROME A. CLAY, including but not limited to engagement letters, retainer agreements or fiduciary instructions from September 1, 2022, to present identifying clients M86CHEM, LLC, DESSAU, Inc. and/or FRANK DELGADILLO. This includes all internal account notes, branch notes, customer contact logs, case management records, and risk or compliance review notes relating to IOLTA account ending 5122 from September 1, 2022, through October 31, 2022. 2. All DOCUMENTS and COMMUNICATIONS identifying: the individual(s) who initiated or authorized each transfer, the method of initiation (online banking, branch visit, wire desk), any device, IP address, authentication method, or branch location and employee involvement for all transfers from the WELLS FARGO ACCOUNT ending in 5122 (IOLTA) account between September 15, 2022, and October 4, 2022. 3. All DOCUMENTS and COMMUNICATIONS reflecting WELLS FARGO’s designation, classification, or understanding of the
--	--	---

	account ending 5122 as: an IOLTA account; a client trust account; or subject to attorney trust restrictions. 4. All non-SAR documents reflecting automated alerts, exception reports, internal transaction reviews, or threshold-based monitoring triggered by the inbound international wire to, or any withdrawal, from WELLS FARGO ACCOUNT ending in 5122 (IOLTA) exceeding \$100,000 for the period September-October 2022. 5. All communications (emails, messages, call logs, correspondence) between Wells Fargo and Jerome A. Clay, the Law Office of Jerome A. Clay, APC, or any authorized representative concerning: the WELLS FARGO ACCOUNT ending in 5122 (IOLTA); the inbound wire; or any withdrawals/transfers in September-October 2022. 6. All documents reflecting stated purpose, justification, or explanation for the inbound international wire, and each outgoing transfer from the WELLS FARGO ACCOUNT ending in 5122 (IOLTA). 7. All DOCUMENTS and COMMUNICATIONS reflecting the interest transfer (Int Transferred) in the amount of \$1813.40 from the WELLS FARGO ACCOUNT ending in 5122 made payable to CA000000510710530 on or about September 30, 2022, and the identity of the real party of interest of said account. 8. All DOCUMENTS and COMMUNICATIONS reflecting the online transfer in the amount of \$40,000.00 from the WELLS FARGO ACCOUNT ending in 5122 made payable to CLAY J PREFERRED CHECKING xxxxxx2531 on or about October 3, 2022. 9. All DOCUMENTS and COMMUNICATIONS reflecting the online transfer in the amount of \$30,000.00 from the WELLS FARGO ACCOUNT ending in 5122 made payable to CLAY J PREFERRED CHECKING xxxxxx2531 on or about October 3, 2022. 10. All DOCUMENTS and COMMUNICATIONS reflecting the online transfer in the amount of \$10,000.00 from the WELLS FARGO ACCOUNT ending in 5122 made payable to CLAY J PREFERRED CHECKING xxxxxx2531 on or about October 4, 2022. 11. All DOCUMENTS and COMMUNICATIONS reflecting the online transfer (Transfer IN Branch/Store) in the amount of \$1,000,000.00 from the WELLS FARGO ACCOUNT ending in 5122 made payable to LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 on or about October 4, 2022.
--	--

		12. All DOCUMENTS and COMMUNICATIONS reflecting the online transfer (Transfer INBranch/Store) in the amount of \$969,924.00 from the WELLS FARGO ACCOUNT ending in 5122 made payable to LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 on or about October 4, 2022. 13. All DOCUMENTS and COMMUNICATIONS reflecting the interest transfer (Int Transferred) in the amount of \$368.14.00 from the WELLS FARGO ACCOUNT ending in 5122 made payable to CA000000510710530 on or about October 4, 2022 and the identity of the real party of interest of said account. 14. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from CLAY J PREFERRED CHECKING xxxxxx2531, from October 3, 2022, including but not limited to any transfers to the LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 (WELLS FARGO ACCOUNT ending in 9821). 15. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from CLAY J PREFERRED CHECKING xxxxxx2531, from October 4, 2022, to date, including but not limited to any transfers to Aero Title Bond and Insured. 16. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from CLAY J PREFERRED CHECKING xxxxxx2531, from October 4, 2022, to date, including but not limited to any transfers to My Flight, LLC. 17. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from CLAY J PREFERRED CHECKING xxxxxx2531, from October 4, 2022, to date, including but not limited to any transfers to Lone Mountain Aviation, Inc. 19. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 (WELLS FARGO ACCOUNT ending in 9821), from October 4, 2022, to date, including but not limited to any transfers to Aero Title Bond and Insured. 20. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 (WELLS FARGO ACCOUNT ending in 9821), from October 4, 2022, to date, including but not limited to any transfers to My Flight, LLC. 21. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 (WELLS FARGO ACCOUNT ending in 9821), from October 4, 2022, to date, including but not limited to any transfers to Lone Mountain Aviation, Inc.
--	--	---

		22. All DOCUMENTS and COMMUNICATIONS reflecting any online transfers from LAW OFFICE OF JEROME A CLAY A DDA xxxxxx9821 (WELLS FARGO ACCOUNT ending in 9821), from October 4, 2022, to date, including but not limited to any transfers to OMAR KABILJAGIC. 23. All DOCUMENTS and COMMUNICATIONS reflecting any authorization, justification, or explanation provided to Wells Fargo for any transfers from the LAW OFFICE OF JEROME A. CLAY A DDA account xxxxxx9821 to OMAR KABILJAGIC. 25. Any and all bank withdrawal transactions to show where to show where the amount of \$2,640,000.00 went, directly or indirectly, after the wire transfer into the WELLS FARGO ACCOUNT ending in 5122. 26. All COMMUNICATIONS reflecting the withdrawals and payments from the \$2,640,000.00 wired into the above-described WELLS FARGO ACCOUNT ending in 5122 from the date of the deposit of those funds to present. 27. All DOCUMENTS including but not limited to checks, wire transfers, debit and credit transactions reflecting the withdrawals and payments from the \$2,640,000.00 wired into the above described WELLS FARGO ACCOUNT ending in 5122 from the date of the deposit of those funds to present. <i>Attorney-Client Privilege and Work Product</i> Cross-Defendants assert in conclusory fashion that the Deposition Subpoena intrudes into attorney-client communications safeguarded by Evidence Code section 954, and the attorney work product absolutely protected under Code of Civil Procedure section 2018.030. When a responding party asserts claims of privilege or attorney work product protection, the responding party must provide sufficient factual information to enable the parties and the court to evaluate the merits of a claim, including, if necessary, a privilege log. (Code Civ. Proc. § 2031.240(c)(1); <i>Riddell, Inc. v. Superior Court</i> (2017) 14 Cal.App.5th 755, 772.) "The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship." (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733.) In addition, "[t]he person claiming protection under the attorney work product doctrine bears the burden of proving the preliminary facts to show the doctrine applies. [Citation.]" (<i>League of California Cities v. Superior Court</i> (2015) 241 Cal.App.4th 976, 993.)
--	--	---

Here, Cross-Defendants have not establish the preliminary facts necessary to show the application of the attorney-client privilege or attorney work product doctrine, and thus, have failed to meet their burden to show that either applies to the requests at issue.

Similarly, Cross-Defendants make the conclusory assertion that the Deposition Subpoena seeks confidential attorney trust account information governed by Business and Professions Code section 6211 and Rule 1.15 of the California Rules of Professional Conduct, which impose strict duties of confidentiality and nondisclosure relating to IOLTA and client fund activity. Cross-Defendants provide no discussion of the rules cited and their application to any of the requests at issue. The court may “disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt.” (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 citing *City of Santa Maria v. Adam* (2012) 211 Cal.App.4th 266, 287.)

Privacy

There is a constitutional right to privacy in financial information. (*Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 655-656; *Cobb v. Superior Court* (1979) 99 Cal.App.3d 543, 550.) “The right of privacy protects against the unwarranted, compelled disclosure of private or personal information and ‘extends to one’s confidential financial affairs as well as to the details of one’s personal life.’ [Citation.]” (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 CalApp.4th 741, 754.) The zone of privacy protected by Article I, Section 1 of the California Constitution encompasses personal financial information, but does not provide absolute protection. (*Ibid.*)”

Here, the 27 document requests seek bank records and other related information/documents concerning three accounts: the IOLTA account ending in 5122, Clay’s personal checking account ending in 2531, and Clay Law Office’s operating account ending in 9821.

The bank records and other documents sought in the instant Deposition Subpoena are directly relevant to the subject matter of the instant action. The Complaint alleges that Clay entered into a Retainer Agreement with Defendants, that the Retainer Agreement was signed at a fixed price, that Delgadillo was required to deposit a \$2,640,000 retainer fee into Clay’s IOLTA account, and that Delgadillo deposited a \$2,640,000 retainer fee to IOLTA. (See Complaint, ¶¶ 11, 13-14, 26-27.) The Complaint alleges that Delgadillo is breaching the Retainer Agreement by demanding the return of the retainer fee that was deposited to the IOLTA, and

		based thereon, among other allegations, asserts causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, and declaratory relief. (Complaint, ¶ 30, 40(C), 56-57, 59.) Additionally, the Cross-Complaint asserts claims for breach of fiduciary duty, promissory fraud breach of contract, unjust enrichment, and conversion of funds, and seeks recovery of funds in excess of \$2,265,000 in converted funds and unrefunded retainer fees from Cross-Defendants concerning the \$2,640,000, as well as other additional payments made to Clay Law Firm, based upon Clay and Clay Law Firm's position as general corporate counsel for M86CHEM, LLC in exchange for a monthly retainer of \$5,000, and a paymaster agreement between M86CHEM, LLC and Clay whereby Clay was to be paid \$40,000 to hold all funds paid by a Japanese company, Meiwa Engineering, Inc. in trust in Clay Law Firm's IOLTA account. (See ROA 82, First Amended Cross-Complaint, ¶¶ 17-24.) Cross-Complainants allege that Clay spent more than \$400,000 in November 2022, to purchase a Cirrus aircraft, and that Clay had purchased a second aircraft with \$350,000, from funds from the IOLTA. (Id., ¶¶ 40, 52; ROA 345, Declaration of Frank Delgadillo, Jr., ¶¶ 16-17, Exs. C-G.) Based on the foregoing, the financial information sought concerning the deposit of \$2,640,000 into the IOLTA, and subsequent withdrawals and/or transfers of those funds are directly relevant to the subject matter of this action. Under these circumstances, while Clay may have a privacy right in his personal checking account ending in 2531, Clay's privacy rights do not outweigh Cross-Complainants' compelling and countervailing interests in disclosure given the relevance of the documents sought. Request Nos. 8, 9, 10, 14, 15, 16, and 17 concern Clay's personal checking account ending in 2531. The records sought are narrowly tailored, as specific to a transaction, except Request Nos. 14-17, which are overbroad as discussed below. Significantly, the IOLTA records produced by Wells Fargo in response to a prior deposition subpoena reflects that the wire transfer in the amount of \$2,640,000 was received on September 13, 2022, with multiple transfers of large amounts to Clay's personal checking ending in 2531 and the operating account of Clay Law Office ending in 9821, among others, from September 15, 2022, through October 4, 2022, amounting to withdrawals in the amount of \$2,642,181.54, indicating that the entirety of the wire transfer had been transferred out of the IOLTA by October 4, 2022. (ROA 353, Ex. C to the Declaration of Stephan M. Brown.) In light of the above, Cross-Defendants do not show an objectively reasonable expectation of privacy in the given circumstances. Cross-Defendants do not otherwise establish that Clay Law Firm has a privacy right to the operating account ending in 9821. Corporations do not have a right of privacy protected
--	--	---

by the California Constitution. (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 755-756.) Because the corporate privacy right is not constitutionally protected, the issue presented in determining whether a request for production infringes that right is resolved by a balancing test. (*Id.* at p. 756.) "The discovery's relevance to the subject matter of the pending dispute and whether the discovery 'appears reasonably calculated to lead to the discovery of admissible evidence' is balanced against the corporate right of privacy. [Citation.] Doubts about relevance generally are resolved in favor of permitting discovery." (*Ibid.*) Even assuming Clay Law Office had a financial right of privacy in the IOLTA account (Request Nos. 1-7, 13, 25-27) or the operating account (Request Nos. 11, 12, 18-24), the relevance of the document requests to the subject matter of this action outweigh any such interest. The requests are narrowly tailored by specific transaction, except Request Nos. 19-23 and 25-27, which are overbroad as discussed below.

Cross-Defendants cite to *McGovern v. BHC Fremont Hospital, Inc.* (2022) 87 Cal.App.5th 181, as confirming "that courts must curtail overreaching demands for sensitive financial materials when the proponent has not shown a sufficiently focused need," and that the case emphasized that there must be a showing that the scope of the request outweighs privacy concerns. (Motion, 9:20-10:2.) However, that case did not involve financial privacy and was concerned with the privacy of mental health records pursuant to Welfare and Institutions Code section 5328, and exceptions thereto. (*McGovern v. BHC Fremont Hospital, Inc.* (2022) 87 Cal.App.5th 181, 196.) As such, it is not applicable to the case at issue.

Overbreadth and Oppression

"Civil discovery is intended to operate with a minimum of judicial intervention. [I]t is a central precept of the Civil Discovery Act ... that discovery be essentially self-executing[.] [Citations]." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.) "When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.)

The Court finds Request No. 6 to be overbroad as to time and therefore limits the request to October 2022-September 2022.

The Court finds Request Nos. 14-17 and 19-23 to be overbroad as to time as the records sought are from October 2022, "to date." The Court limits these requests to documents from October 2022 to October 2023. The First Amended Cross-Complaint alleges that Clay Law Firm was

		sent a formal demand letter for an accounting on or about September 27, 2023. (ROA 82, First Amended Cross-Complaint, ¶ 48.) The Court finds Request No. 14 seeking all documents and communications reflecting any online transfer from Clay's personal checking from October 3, 2022, including but not limited to any transfers to the operating account for Clay Law Office is overbroad in scope and time. The Motion to Quash is GRANTED as to Request No. 14. The Courts finds Request Nos. 25-27 to be overbroad on their face. The Motion to Quash is GRANTED as to Request Nos. 25-27. To the extent that Cross-Defendants claim that the Deposition Subpoena is oppressive, no showing is made that it creates an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought. "Oppression must not be equated with burden. The objection based upon burden must be sustained by evidence of showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought." (<i>West Pico Furniture Co. of Los Angeles v. Superior Court</i> (1961) 56 Cal.2d 407, 417 [interrogatories].) Based on the foregoing, in sum, the motion to quash is DENIED as to Request Nos. 1-13, 15-17, and 19-23, subject to the limitations set forth above. The motion to quash is GRANTED as to Request Nos. 14, and 25-27. As a number of the requests may implicate the privacy rights of third parties, the Court ORDERS the parties to submit a joint stipulation and protective order as to confidentiality to protects such privacy interests, within 20 days, for the Court's approval. Wells Fargo is ORDERED to produce responsive documents within 30 days after receiving notice of the approved stipulation and protective order. <i>Cross-Complainants to give notice.</i>
111	Elsaey vs. Premier Chrysler Dodge Jeep Ram of Buena Park, 24-01413332	Defendant, Premier Automotive of Placentia LLC dba Premier Chrysler Dodge Jeep Ram of Buena Park ("Premier"), moves for an order granting summary judgment in favor of Premier and against Plaintiffs, Amir Elsaey and Magdalena Elsaey ("Plaintiffs"). In the alternative, Premier moves for summary adjudication as to the claims for premises liability, negligence and loss of consortium on the grounds that they are barred

		by the primary assumption of the risk doctrine, the Privette Doctrine, and the lack of foreseeability of a violent attack. This motion initially came on for hearing on July 31, 2026. It was continued to August 20, 2026, for Plaintiffs to re-file the Index of Exhibits with highlighting which allows the highlighted portions to be deposition transcripts to be visible by August 3, 2206. (ROA 181.) On July 31, 2026, Plaintiffs re-filed their Index of Exhibits in three (3) volumes in accordance with the Court's order. (ROA 184, 186, 188.) Premier contends that Plaintiffs' claims for premises liability, negligence, and loss of consortium are barred based on the primary assumption of the risk doctrine and Privette Doctrine. Plaintiffs contend that Premier's motion must be treated only as a motion for summary judgment as it failed to comply with California Rules of Court, rule 3.1350. Plaintiffs also contend that the primary assumption of the risk doctrine does not apply, and that even if it applies, it does not bar Plaintiffs' claims because Premier unreasonably increased the risks beyond those inherent in Plaintiff, Amir Elsaey's duties. Plaintiffs also contend that the Privette doctrine does not bar Plaintiffs' claims because the retained control exception applies, the negligently furnishing of unsafe equipment exception applies, and the concealed hazard exception applies. <i>Service of Opposition</i> The reply contends that Plaintiffs did not properly serve their opposition on July 17, 2026, as Plaintiffs filed and served their opposition to Defendant on July 17, 2026 by e- service. Code of Civil Procedure section 1005 states, in part: "all papers opposing a motion and all reply papers shall be served by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013," (Code Civ. Proc. § 1005(c).) Section 1011 states, in part: "If service is made by electronic service, it shall be made pursuant to Section 1010.6 and applicable rules on electric [sic] service in the California Rules of Court." (Code Civ. Proc. § 1011(c).) Section 1013 states, in part: "Electronic service shall be permitted pursuant to Section 1010.6 and the rules on electronic service in the California Rules of Court." (Code Civ. Proc. § 1013(g).) Therefore, electronic service of the opposition is proper. <i>Notice of Summary Adjudication</i> Plaintiffs argue that although Premier's notice of motion states that it is in the alternative for summary adjudication, Premier fails to specify in its notice of motion and motion the claim, cause of action, or issues it is moving on, as required by California Rules of Court, rule 3.1350, such that the court
--	--	--

		must treat the motion solely as a motion for summary judgment. If summary adjudication is sought, “the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (California Rules of Court, rule 3.1350(b).) In order to move for summary adjudication, the party moving must specify in its notice of motion and motion the claim, causes of action, or issues it is moving on. (California Rules of Court, rule 3.1350 (b).) A notice of motion must state the “grounds upon which it will be made.” (<i>Homestead Savings v. Superior Court</i> (1986) 179 Cal. App. 3d 494, 498 [citing Code Civ. Proc. § 1010] (“<i>Homestead</i>”).) The court has no power to adjudicate others. (<i>Maryland Cas. Co. v. Reeder</i> (1990) 221 Cal. App. 3d 961, 974 n. 4; <i>Homestead, supra</i>, 179 Cal. App. 3d at p. 498.) A party does not waive any requirement of notice for a subissue that was not set forth in the notice by responding to the argument. (<i>Homestead, supra</i>, 179 Cal. App. 3d at p. 498.) Here, the notice of motion provides that Plaintiffs’ action is barred due to “the Primary Assumption of Risk doctrine, the Privette Doctrine and the lack of foreseeability of a violent attack,” and that Plaintiffs are precluded “from recovering damages from Premier under premises liability theories of liability, negligence and loss of consortium. (Notice of Motion, 2:13-21.) Because the specific cause of action and/or affirmative defense for summary adjudication are not stated specifically in the notice of motion, the Court treats the instant motion as a motion for summary judgment only. In any event, the five issues for summary adjudication set forth in Premier’s Separate Statement of Undisputed Material Facts rely on the same set of 22 asserted material facts. <i>Merits</i> Initially, the operative First Amended Complaint (“FAC”) asserts three causes of action for negligence, premises liability, and loss of consortium. The first and second causes of action for negligence and premises liability are brought by Plaintiff, Amir Elsaey against Premier, and the third cause of action for loss of consortium is brought by Plaintiff, Magdalena Elsaey against Premier. (See ROA 12, FAC.) It is alleged that the incident arises out of a violent assault on Plaintiff, Amir Elsaey that occurred on or about July 30, 2022 (the “Subject Incident”), at or near a car dealership located at 6011 Botryoides Ave., Buena Park, CA (the “Subject Premises”); that prior to and on July 30, 2022, individuals, including DOE 1, vandalized the Subject Premises; that prior to Plaintiff being assaulted on July 30, 2022, DOE 1 was observed entering the Subject Premises through a torn hole
--	--	--

in the security fence; that the subject damaged security fence was reported to Defendants on several prior occasions where vandals had gained entrance to the Subject Premises by entered the damaged security fence; that several vandalizers and persons who were not lawfully permitted on the Subject Premises entered the Subject Premises through the hole in the security fence on prior occasions; that these unlawful entries on the Subject Premises were reported to the Defendants on prior occasions before the Subject Incident; and that despite this known hazard, Defendants took no action to remedy, replace, or repair the security fence or to prevent unlawful and unauthorized access to activities on the Subject Premises. (FAC, ¶¶ 10, 12-19.) Plaintiffs allege that DOE 1 was observed on the Subject Premises, vandalizing vehicles located on the Subject Premises, by the Defendants, and their agents, servants, and/or employees; that persons unlawfully on the Subject Premises were permitted to enter the Subject Premises through the hole in the security fence; and that it was known or should have been known by the Defendants of the risk posed by persons unlawfully entering the Subject Premises. (FAC, ¶¶ 20-22.) Plaintiffs allege that at "approximately 4:30 a.m. on July 30, 2022, Plaintiff AMIR ELSAEY was working as a security guard on the SUBJECT PREMISES, in the course and scope of his employment with NCS Security. Plaintiff observed DOE 1 attempting to steal a vehicle from the car lot at the SUBJECT PREMISES. Plaintiff AMIR ELSAEY approached DOE 1, who then violently assaulted him and then fled from the SUBJECT PREMISES." (FAC, ¶ 23.)

The first cause of action for negligence incorporates the above allegations and alleges that Defendants breached a duty of reasonable care as on or about July 30, 2022, each of the defendants, "failed to reasonably own, construct, manage, maintain, repair, replace, supervise, control, and operate the SUBJECT PREMISES by, among other things, knowingly allowing a hole to remain in the security fence that provided access to persons who were not lawfully on the SUBJECT PREMISES and who intended to cause damage and harm to persons and property." (FAC, ¶¶ 26, 31.) It is alleged that the damaged security fence "posed an unreasonable risk of harm to others even when used in a reasonably foreseeable manner, and posed a particular risk to Plaintiff AMIR ELSAEY, who was responsible for providing overnight security at the SUBJECT PREMISES as an employee of NCS Security." (FAC, ¶ 32.) It is also alleged that Defendants "performed acts that affirmatively contributed to the creation of the unsafe conditions or otherwise failed to remediate such conditions despite having actual and constructive knowledge of the damaged security fence and prior unlawful access and activities on the SUBJECT PREMISES." (FAC, ¶ 33.) It is additionally alleged that Defendants negligently failed to remedy the known hazardous

		conditions and allowed the Subject Incident to occur. (FAC, ¶ 36.) The second cause of action for premises liability incorporates the above allegations and alleges that Mr. Elsaey was an employee of an independent security company and invitee of Defendants, and that while Mr. Elsaey was on the Subject Premises on or about July 30, 2022, providing security services to Defendants, Defendants, and each of them, "so negligently and carelessly owned, operated, supervised, cared for, inspected, handled, and maintained the SUBJECT PREMISES and the security fence so as to cause the SUBJECT INCIDENT which resulted in Plaintiff AMIR ELSAEY being seriously injured." (FAC, ¶¶ 44-47.) It is alleged that "[t]he lack of adequate security fences created an unreasonable risk of harm to those using the SUBJECT PREMISES in a reasonably foreseeable manner, including, specifically, Plaintiff AMIR ELSAEY," and that Defendants created, maintained, controlled and allowed a dangerous condition of the Subject Premises to exist in the area where Plaintiff was assaulted. (FAC, ¶¶ 49-50.) The third cause of action for loss of consortium incorporates the above allegations, and alleges that Plaintiff Magdalena Elsaey was and is the lawful wife of Plaintiff Amir Elsaey, and that while Mr. Elsaey was able to and did perform his duties as a spouse prior to the Subject Incident, he has been unable to perform said duties subsequent to his injuries from the Subject Incident. (FAC, ¶¶ 55-57.) Premier's Answer to the FAC asserts its fourth affirmative defense as assumption of the risk, and its sixteenth affirmative defense as the Privette Doctrine. <i>Premier's Evidentiary Objections</i> "In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court," (Code Civ. Proc. § 437c(c).) "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to the disposition of the motion." (Code Civ. Proc. § 437c(q).) The Court SUSTAINS Objection Nos. 1, 2, 3, 10, 11, 12, and 13. The Court OVERRULES Objection Nos. 4, 5, and 6.
--	--	--

		The Court declines to rule on Objection Nos. 7, 8, and 9 as the evidence at issue is not material to the disposition of the motion. " 'A properly qualified expert may offer an opinion relating to a subject that is beyond common experience, if that expert's opinion will assist the trier of fact. (Evid.Code, § 801, subd. (a).) Even so, the expert opinion may not be based on assumptions of fact that are without evidentiary support or based on factors that are speculative or conjectural, for then the opinion has no evidentiary value and does not assist the trier of fact.' (Ibid.)" (<i>Garibay v. Hemmat</i> (2008) 161 Cal.App.4th 735, 742–743.)] <i>Primary Assumption of the Risk</i> Premier contends that Plaintiff Amir Elsaey's injuries were caused by an inherent occupational risk, and that Premier did not do anything that could be considered to have unreasonably increased the inherent risk, such that Plaintiff Amir Elsaey's claims for negligence and premises liability are barred. Plaintiff contends that the primary assumption of the risk doctrine does not apply under the facts of this case, and that the Firefighter's Rule is inapplicable. Plaintiff also contends that even if the primary assumption of the risk doctrine applies, Premier unreasonably increased the risks beyond those inherent in Plaintiff, Amir Elsaey's duties, that Plaintiff did not assume the risk of being violently attacked by a trespasser, and that the attack was foreseeable to Premier. Initially, the primary assumption of the risk doctrine has been applied to the employment of a security guard in <i>Tilley v. C.Z. Master Assn.</i> (2005) 131 Cal.App.4th 464 ("<i>Tilley</i>"). The Court of Appeal rejected an argument that the primary assumption of risk doctrine cannot be applied against a private safety officer, and found summary judgment would have been appropriate, noting that the homeowners association was "itself the entity which is alleged to have engaged Tilley to confront potentially violent young party goers in Coto—an extension of the more passive 'observe and report' function normally required of BonaFide security guards." (<i>Id.</i> at p. 490.) "Assuming that allegation were proven, it would establish that CZ [homeowners association] hired Tilley to confront the very hazard which resulted in his injury, and would thus exonerate CZ from any duty to protect him from that hazard." (<i>Ibid.</i>) Here, the FAC alleges that Premier failed to reasonably own, construct, manage, maintain, repair, replace, supervise, control, and operate the Subject Premises, by, among other things, knowingly allowing a hole to remain in the security fence, creating an unreasonable risk of harm and/or dangerous condition, resulting in the harm to Mr. Elsaey.
--	--	--

		(FAC, ¶¶ 19, 21, 22, 31-33, 36, 41, 47-50, 52.) Therefore, it appears that the primary assumption of the risk doctrine may be applicable here. "The question whether the primary assumption of risk doctrine applies, and therefore whether a duty of care exists, is a legal question to be decided by the court. [Citation.]" (<i>Whelihan v. Espinoza</i> (2003) 110 Cal. App. 4th 1566, 1572.) "The doctrine 'embodies a legal conclusion that there is "no duty" on the part of the defendant to protect the plaintiff from a particular risk.' [Citation.]" (<i>Ibid.</i>) In the seminal case concerning the doctrine of primary assumption of risk, <i>Knight v. Jewett</i> (1992) 3 Cal.4th 296, the California Supreme Court found that the question of whether the defendant owed a legal duty to protect the plaintiff from a particular risk of harm does not turn on the reasonableness or unreasonableness of the plaintiff's conduct, but rather on the nature of the activity or sport in which the defendant is engaged and the relationship of the defendant and the plaintiff to that activity or sport." (<i>Knight v. Jewett</i> (1992) 3 Cal.4th 296, 309.) "In cases involving 'primary assumption of risk' –where, by virtue of the nature of the activity and the parties' relationship to the activity, the defendant owes no legal duty to protect the plaintiff from the particular risk of harm that caused the injury—the doctrine continues to operate as a complete bar to the plaintiff's recovery." (<i>Id.</i> at p. 314.) There are two species of assumption of risk: primary and secondary. (<i>Avila v. Citrus Cmty. Coll. Dist.</i> (2006) 38 Cal. 4th 148, 161.) "Primary assumption of the risk arises when, as a matter of law and policy, a defendant owes no duty to protect a plaintiff from particular harms. [Citation.]" (<i>Ibid.</i>) "Under this duty approach, a court need not ask what risks a particular plaintiff subjectively knew of and chose to encounter, but instead must evaluate the fundamental nature of the sport and the defendant's role in or relationship to that sport in order to determine whether the defendant owes a duty to protect a plaintiff from the particular risk of harm. [Citation.]" (<i>Ibid.</i>) Primary assumption of the risk operates as a complete bar because of a legal determination that the defendant did not owe any duty to protect the plaintiff from the particular risk of harm involved in the claim. (<i>Peart v. Ferro</i> (2004) 119 Cal. App. 4th 60, 71.) " "The overriding consideration in the application of primary assumption of the risk is to avoid imposing a duty which might chill vigorous participation in the implicated activity and thereby alter its fundamental nature." [Citation.]" (<i>Id.</i> at pp. 71-72.) "[T]he primary assumption of the risk doctrine, as applied in the employment context, provides that one who hires a person to confront a particular risk, owes no duty to protect the person against that risk." (<i>Tilley, supra</i>, 131 Cal.App.4th
--	--	---

at p. 489.) "As explained in [*Neighbarger v. Irwin Industries, Inc.* (1994) 8 Cal.4th 532], 'it is unfair to charge the defendant with a duty of care to prevent injury to the plaintiff arising from the very condition or hazard the defendant has contracted with the plaintiff to remedy or confront.' [Citation.]" (*Ibid.*) "The primary assumption of the risk doctrine rests on a straightforward policy foundation: the need to avoid chilling vigorous participation in or sponsorship of recreational activities by imposing a tort duty to eliminate or reduce the risks of harm inherent in those activities." (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1156.) The Court must determine whether Premier did anything to increase the risks inherent in providing overnight security services. (See *Amezcuca v. Los Angeles Harley-Davidson, Inc.* (2011) 200 Cal.App.4th 217, 232 [finding that although the primary assumption of risk applied to an organized motorcycle ride on public highways, the Court of Appeal "still must determine whether Harley-Davidson did anything to increase the risks inherent in that activity"]; *Luna v. Vela* (2008) 169 Cal.App.4th 102, 111 [finding that although tripping over a net pole tie line is an inherent risk of volleyball, the defendant had a duty not to increase that particular risk of harm beyond what is inherent in the sport itself and it was for the trier of fact to determine whether defendant breached his limited duty not to increase the risks inherent in the sport of volleyball].) "This is because, although defendants do not have a duty to protect the plaintiff from risks inherent in the activity, they do not have a duty not to increase the risk of harm beyond what is inherent in the activity. [Citation.]" (*Amezcuca v. Los Angeles Harley-Davidson, Inc.* (2011) 200 Cal.App.4th 217, 232.)

Primary assumption of the risk governs claims arising from inherent occupational hazards. (*Gregory v. Cott* (2014) 59 Cal.4th 996, 1001.) "Courts have held that when the plaintiff claims the defendant's conduct increased the inherent risks of a sport, summary judgment on primary assumption of the risk grounds is unavailable unless defendant disproves the theory or establishes a lack of causation. [Citations.]" (*Huff v. Wilkins* (2006) 138 Cal.App.4th 732, 740.) It is for the court to decide the inherent risks of an activity, and whether the defendant has increased the risks of the activity beyond the risks inherent in the activity. (*American Golf Corp. v. Superior Court* (2000) 79 Cal.App.4th 30, 37.) An expert opinion may inform the court on these questions. (*Ibid.*)

"` "Judges deciding inherent risk questions . . . may consider not only their own or common experience with the . . . activity involved but may also consult case law, other published materials, and documentary evidence introduced by the parties on a motion for summary judgment." ' [Citations.]" (*Moore v. William Jessup University* (2015) 243 Cal.App.4th 427, 435.) "The inquiry whether the primary

		assumption of the risk applies and whether the defendant owes the plaintiff a duty to not increase the risks inherent in an activity is based on objective factors having to do with the nature of the subject activity and the relationship of the plaintiff and the defendant to that activity. [Citations.]” (<i>Ibid.</i>) “The plaintiff’s subjective appreciation or acceptance of the foreseeable occupational hazard involved is immaterial. [Citation.]” (<i>Ibid.</i>) Here, initially, Premier fails to establish that the property alleged in the FAC, 6011 Botryoides Ave., Buena Park, CA, was part of the premises for which Mr. Elsaey’s employer was contracted to provide security services. The Security Guard Agreement states that the “Protected Premises” for Premier is located at 7301 Artesia Blvd., Buena Park, CA 90621, and “additional 2 other locations.” (Ex. 1 to Declaration of Nicole M. Ortiz/Premier’s Appendix of Exhibits, Security Guard Agreement Updated, ¶ 1.) In this regard, Premier fails to establish that Mr. Elsaey was employed to provide security services for the Subject Premises alleged in the FAC, and in turn, that he was hired to confront a particular risk, i.e., risks of providing security services on the Subject Premises. Nevertheless, Plaintiffs’ additional material facts include that Mike Bailey, the owner of NCS/SPS testified that the scope of work for SPS/NCS was for the dealership office and the dirt lot where Plaintiff was attacked. (Plaintiffs’ Additional Material Facts, No. 54; Ex. 3 to Plaintiffs’ Index of Evidence, Deposition of Michael Bailey, 31:1-19.) It is undisputed that Mr. Elsaey was employed and paid as security guard for SPS, as of July 30, 2022. (Plaintiff’s Response Separate Statement (“PSS”), Nos. 2, 5.) It is also undisputed that Mr. Elsaey’s duties were to observe, report, and investigate at the premises. (PSS, No. 12.) While Mr. Elsaey states that he has never seen the Security Guard Service Agreement and has no understanding of what is or is not contained within that document, it is undisputed that the Security Guard Service Agreement defines the “scope of work” as follows: “NCS Security shall provide standard and conventional security guard services to client’s premises as indicated in Service Agreement. This includes and not limited to perimeter guard tour of property, access control of property based upon client’s direction, parking control of client’s property based upon client’s direction and the response to client’s security needs at subject property. Included in scope of work are: “1. Monitoring, observation, documentation, and reporting of client premises during hours contracted by client. “2. Additional security service needs within the realm of “private security guard” work and within limitations set forth by laws governing Private Patrol Operators within the State of California.”
--	--	--

		(Ex. 1 to Declaration of Nicole M. Ortiz ("Ortiz Decl.)/Premier's Appendix of Exhibits ("Premier's AOE"), Security Guard Agreement Updated, Attachment "A"; Declaration of Amir Elsaey, ¶ 2.) Premier asserts as a material fact that SPS dictated the guard's policies and procedures that Mr. Elsaey was required to follow in performing security guard services at Premier's premises, however, this fact is disputed. Plaintiffs assert that Premier dictated the policies and procedures that Mr. Elsaey was required to follow in performing security guard services at Premier's services. (PSS, No. 8; Declaration of Frank Alvarez, ¶ 5; Ex. 1 to Ortiz Decl./Premier's AOE, Security Guard Agreement Updated; Ex. 2 to Ortiz Decl./Premier's AOE, Deposition of Mike Bailey ("Bailey Depo."), 81:6-11, 83:11-18; Ex. 3 Ortiz Decl./Premier's AOE, Deposition of Amir Elsaey, Vol. 1, 49:25-52:7; Ex. 5 to Ortiz Decl./Premier's AOE, Employment Contract; Ex. 6 to Ortiz Decl./Premier's AOE, Security Officer Job Description; Ex. 1 to Plaintiffs' Index of Exhibits ("IOE"), Deposition of Amir Elsaey, Vol. I, 79:16-82:8, 93:17-20; Ex. 2 to Plaintiffs' IOE, Deposition of Frank Alvarez, 49:16-21, 50:5-6; Ex. 3 to Plaintiffs' IOE, Deposition of Michael Bailey, 39:16-41:18; 90:17-24; 132:20-133:14; 134:9-136:22; 137:4-139:19; Ex. 10 to Plaintiffs' IOE, Deposition of Amir Elsaey, Vol. II, 153:24-154:14; 166:1-9; 296:3-11, 18-22; 298:3-299:10.) A moving party should "[i]nclude only those facts which are truly material to the claims or defenses involved because the separate statement effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the] separate statement, the motion may be denied." (<i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 252.) Further, and importantly, Plaintiffs' additional material facts support that Premier increased the risks inherent in providing security services by failing to maintain the security fence in the dirt lot where Mr. Elsaey was attacked. Premier does not dispute any of the additional material facts asserted by Plaintiffs. Plaintiffs' undisputed material facts establish that trespassers were entering the dirt lot where Mr. Elsaey was attacked through a perimeter fence and that Premier was aware that the perimeter fence was being breached by trespassers on a recurring basis as in the approximately 18 months prior to the attack, Plaintiff submitted to NCS/SPS, whose owner Michael Bailey (Bailey) relayed to Frank Alvarez (Premier's General Manager), Augustin Galeana (Premier's Sales Manager) and Marco Fernandez, (Premier's Service Manager) via email, detailed reports documenting chronic fence cuts, as well as reported the problems with the cuts in the fence many times verbally to Augi Galeana. (Plaintiffs' Additional Material Facts ("AMF"), Nos. 26-30, Declaration of Mohamed El Biali aka Mike Bailey, ¶ 4; Ex. 2 to Plaintiffs' IOE,
--	--	--

		Deposition of Frank Alvarez, 50:24-51:6; Ex. 3 to Plaintiffs' IOE, Deposition of Michael Bailey, 28:15-21; Ex. 4 to Plaintiffs' IOE, Deposition of Augustin Galeana, 15:17-16:8, 17:4-12, 20:12-19, 24:14-25:3; Ex. 5 to Plaintiffs' IOE, Deposition of Marco Fernandez, 15:20-16:3; Ex. 8 to Plaintiffs' IOE; Ex. 10 to Plaintiffs' IOE, Deposition of Amir Elsay, Vol II, 169:18-20; 174:10-14; 174:24-175:6; 303:1-21.) Plaintiffs' additional facts also establish that Premier's General Manager, Frank Alvarez, knew that the fence cuts created "access for criminals" and personally observed fence holes, and that Marcos Fernandez gave Moe Jubran instructions to repair the hole in the fence, and the repair included using pliers to bend the wires back to together and to use zip ties to zip up the holes. (Plaintiffs' AMF, No. 32; Ex. 2 to Plaintiffs' IOE, Deposition of Frank Alvarez, 81:19-82:21; 85:13-18; 86:1-4; 89:4-11; Ex. 6 to Plaintiffs' IOE, Deposition of Moe Jubran, 40:12-23; 41:18-42:5.) It is additionally undisputed that sometime prior to July 30, 2022, there was a hole "bit enough to fit a 6-foot body" and that it was repairable with closing the hole with zip ties. (Plaintiffs' AMF, No. 52, Ex. 6 to Plaintiffs' IOE, Deposition of Moe Jubran, 40:12-23; 41:8-42:5.) It is additionally undisputed that the repairs were "recut" multiple times after his repairs. (Plaintiffs' AMF, Nos. 51, Ex. 6 to Plaintiffs' IOE, Deposition of Moe Jubran, 41:18-42:5.) Plaintiffs' additional facts also establish that Manager Marcos Fernandez testified that no one person was ever specifically tasked with inspecting the fences, that there were no job descriptions with regards to inspecting fences, and that the holes in the fences created a situation where trespassers could more easily access the dirt lot. (Plaintiffs' AMF No. 33, Ex. 5 to Plaintiffs' IOE, Deposition of Marco Fernandez, 42:23-43:8; 46:2-4; 46:18-47:7.) Plaintiffs' evidence further establishes that Mr. Elsaey had conversations with the manager at Premier about the broken fence, and that he always promised that it would be fixed but he never did. (Ex. 1 to Plaintiffs' IOE, Deposition of Amir Elsaey, Vol. I, 90:2:9.) Based on the foregoing, even if the primary assumption of risk applies, there is a triable issue of fact as to whether Premier increased the risks inherent in providing overnight security services where, prior to the attack on Mr. Elsaey, Premier was aware of holes being cut into the fence on the dirt lot, but failed to properly repair the fence, and knew that this allowed trespassers to enter the lot.
--	--	---

		While it is undisputed that Mr. Elsaey understood that the work context involved conflictual contact, aggressive people, pleasant, or angry people (PSS, No. 12), Premier's failure to properly repair the holes in the fence despite its knowledge of the holes and multiple failed attempts to fix them with a zip-tie method increased the risk of encountering potential criminal activity and/or dangerous situations. To the extent that Premier relies on <i>Tilley</i>, it is distinguishable as the allegation for increased risk of harm to security personnel was an instruction to respond to reports of disturbances without providing any further instruction or guidance. (<i>Tilley, supra</i>, 131 Cal.App.4th at p. 472.) In contrast, the asserted conduct by Premier was failing to properly maintain and repair a fence that allowed trespassers into the lot which made the performance of Mr. Elsaey's duties more dangerous. Premier also cites to <i>Beninati v. Black Rock</i> (2009) 175 Cal.App.4th 650 ("<i>Beninati</i>"), and <i>Moore v. William Jessup University</i> (2015) 243 Cal.App.4th 427 ("<i>Moore</i>"), with regards to the issue of increasing the inherent risk of harm. In <i>Beninati</i>, an attendee at the Burning Man festival and fell in a bonfire and burned his hands, and the plaintiff attendee sued either the lessee or possessor of the land upon which the festival was held for negligence, asserting that defendant negligently allowed attendees to approach the burning remnants of the Burning Man sculpture without provision for safe ingress and egress. (<i>Beninati, supra</i>, 175 Cal.App.4th at p. 653.) The Court concluded that the plaintiff had "deliberately, and with awareness of specific risks inherent in the activity, nonetheless chose to engage in an activity similar to that engaged in by a firefighter as part of the firefighter's professional duties," and that "[t]he risk of injury to those who voluntarily decide to partake in the commemorative ritual at Burning Man is self-evident." (<i>Id.</i> at p. 658.) The Court also concluded that plaintiff's argument that defendant increased the risk of harm failed for lack of factual support for plaintiff's contentions of lack of supervision of the festival site and the use of wire cables to stabilize the Burning Man sculpture. (<i>Id.</i> at p. 660.) In contrast, here, Plaintiffs present evidence of the existence of holes in the fence, knowledge by Premier of said holes in the fence, and failed attempts to repair said holes in the fence while knowing that allowing the holes in the fence to persist would allow trespassers to enter the lot. In <i>Moore</i>, the Court found that risk of injury for lifting heavy boxes that may be labeled with inaccurate weight information was inherent in the plaintiff's job as a UPS delivery driver, such that the shipper of the package did not owe a duty to protect plaintiff from that risk, and that the shipper did not
--	--	---

	increase the risk of harm. (<i>Moore, supra</i>, 243 Cal.App.4th at pp. 437-440.) The Court found that UPS delivery drivers had a reason not to rely on customer weight representations in determining how to move or lift package, and that UPS trained its employees to test the weight of the package before lifting it. (<i>Id.</i> at p. 439.) Conversely, here, the risks inherent Mr. Elsaey's provision of security services increased by allowing the repeated condition of fence with holes to persist. The motion for summary judgment based on the application of the primary assumption of the risk doctrine is DENIED. To the extent that Premier argues that that Premier never installed a security screen on the fence as required by its lease with the City of Buena Park, or that Premier promised to provide adequate lighting for the safety of the security guards patrolling the lot at night and failed to do so, these are not alleged in the FAC. "[S]ummary judgment cannot be denied on a ground not raised by the pleadings. [Citations.]" (<i>Bostrom v. County of San Bernardino</i> (1995) 35 Cal.App.4th 1654, 1663.) <i>Privette Doctrine</i> Premier contends that the Privette Doctrine applies to bar Plaintiffs' negligence and premises liability causes of action, and that no exception applies here. Plaintiffs contend that exceptions to the Privette Doctrine apply, including the retained control exception, the negligently furnishing of unsafe equipment exception, and the concealed hazard exception. Initially, Premier's purported undisputed facts for the Privette doctrine is the same as that asserted for the primary assumption of the risk doctrine. As set forth above, there is a triable issue of material fact as to certain facts asserted by Premier which are equally applicable to the Privette doctrine. On this basis, the Court may deny the motion for summary judgment. Separately, there is a triable issue of material fact as to whether an exception to the Privette doctrine applies. "Generally, when employees of independent contractors are injured in the workplace, they cannot sue the party that hired the contractor to do the work. [Citation.]" (<i>Seabright Ins. Co. v. US Airways, Inc.</i> (2011) 52 Cal.4th 590, 594 ("<i>Seabright</i>") citing to <i>Privette v. Superior Court</i> (1993) 5 Cal.4th 689.) The Privette rule applies when the party that hired the contractor fails to comply with workplace safety requirements concerning the precise subject matter of the contract, and
--	---

		the injury is alleged to have occurred as a consequence of that failure. (<i>Seabright, supra</i>, 52 Cal.App.4th at p. 594.) "By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes to the contractor's employees to ensure the safety of the specific workplace that is the subject of the contract. That implicit delegation includes any tort law duty the hirer owes to the contractor's employees to comply with applicable statutory or regulatory safety requirements." (<i>Ibid.</i>) "When a person or organization hires an independent contractor, the hirer presumptively delegates to the contractor the responsibility to do the work safely. [Citations.]" (<i>Sandoval v. Qualcomm Incorporated</i> (2021) 12 Cal.5th 256, 269 ("<i>Sandoval</i>").) "Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a 'strong policy' of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation.] In light of this presumption, we have refused to extend liability to hirers even on theories of nominally 'direct' liability, such as negligent failure to require precautions or negligent hiring of an incompetent contractor. [Citation.]" (<i>Id.</i> at p. 270.) "But that presumption gives way to two recognized exceptions: where the hirer either withholds critical information regarding a concealed hazard (<i>Kinsman v. Unocal Corp.</i> (2005) 37 Cal.4th 659, 664, 36 Cal.Rptr.3d 495, 123 P.3d 931 (<i>Kinsman</i>)); or retains control over the contractor's work and actually exercises that control in a way that affirmatively contributes to the worker's injury (<i>Hooker v. Department of Transportation</i> (2002) 27 Cal.4th 198, 202, 115 Cal.Rptr.2d 853, 38 P.2d 1081 (<i>Hooker</i>))." (<i>Id.</i> at p. 264.) The Privette doctrine gives way to exceptions when a hirer withholds critical safety information and fails to effectively delegate its responsibilities in practice, or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work. (<i>Sandoval, supra</i>, 12 Cal.5th at p. 271.) In <i>Kinsman</i>, the California Supreme Court "articulated the rule that a landowner-hirer owes a duty to a contract worker if the hirer fails to disclose to the contractor a concealed premises hazard. [Citation.]" (<i>Ibid.</i>) In <i>Hooker</i>, the California Supreme Court "articulated the rule that the hirer owes a duty to contract worker if the hirer retains control over any part of the work and actually exercises that control so as to affirmatively contribute to the worker's injury. [Citation.]" (<i>Ibid.</i>) The Privette presumption affects the burden of producing evidence. (<i>Alvarez v. Seaside Transportation Services LLC</i> (2017) 13 Cal.App.5th 635, 643.) Privette bars plaintiff's action absent a triable issue of fact as to whether an
--	--	--

exception applies that would permit plaintiff to recover against defendants. [Citation.]” (*Gravelin v. Satterfield* (2011) 200 Cal.App.4th 1209, 1211.)

Initially, Plaintiffs do not contend that the Privette doctrine does not apply. Indeed, it is undisputed that on or about May 5, 2022, SPS signed a security guard service agreement to provide unarmed security guard services for Premier, and that on July 30, 2022, Mr. Elsaey was a licensed security and was employed and paid as a security guard for SPS, as well as had a shift from 8:00 p.m. or 9:00 p.m. to 6:00 a.m., after Premier’s business hours. (PSS, Nos. 1, 2, 5, 13.) It is also undisputed on or about July 30, 2022, Mr. Elsaey got out of his vehicle to walk the premises and investigate an unknown noise that he heard, and was assaulted and battered by an unknown third-party criminal. (PSS, No. 14.) After this incident, Mr. Elsaey filed a workers’ compensation claim against SPS in connection with the subject incident, and has received workers’ compensation benefits as a result. (PSS, No. 15.) Based on the above, Premier hired an independent contractor, SPS, to perform security services, and Mr. Elsaey was an employee of SPS and was injured while performing such services such that the Privette doctrine would bar Plaintiffs’ claims unless an exception applies.

Retained Control Exception

There is an exception when the hirer’s conduct has affirmatively contributed to the injuries of the contractor’s employee. (*Hooker v. Department of Transportation* (2002) 27 Cal.4th 198, 211-212.) “[M]ere retention of the ability to control safety conditions is not enough. ‘[A] general contractor owes no duty of care to an employee of a subcontractor to prevent or correct unsafe procedures or practices to which the contractor did not contribute by direction, induced reliance, or other affirmative conduct’” (*Id.* at p. 209.) “‘. . . The mere failure to exercise a power to compel the subcontractor to adopt safer procedures does not, without more, violate any duty owed to plaintiff. . . .’” (*Ibid.*) “[A]ffirmative contribution need not always be in the form of actively directing a contractor or contractor’s employee. There will be times when a hirer will be liable for its omissions. For example, if the hirer promises to undertake a particular safety measure, then the hirer’s negligent failure to do so should result in liability if such negligence leads to an employee injury.” (*Id.* at p. 212, fn. 3.)

Under the retained control exception in *Hooker*, the plaintiff “must establish not only that the hirer retained control over the contracted work, but also that the hirer actually exercised that retained control in a manner that affirmatively contributed to the contract worker’s injury. [Citation.]” (*Sandoval, supra*, 12 Cal.5th at p. 274.) A hirer ‘retains control’ where it retains a sufficient degree of authority over

		the manner of performance of the work entrusted to the contractor.” (<i>Ibid.</i>) Additionally, “a hirer’s authority over the contracted work amounts to retained control only if the hirer’s exercise of that authority would sufficiently limit the contractor’s freedom to perform the contracted work in the contractor’s own manner. [Citations.]” (<i>Id.</i> at p. 275.) “A hirer ‘actually exercise[s]’ its retained control over the contracted work when it involves itself in the contracted work’ such that the contractor is not entirely free to do the work in the contractor’s own manner.’ [Citations.]” (<i>Sandoval, supra</i>, 12 Cal.5th at p. 276.) “Unlike ‘retained control,’ which is satisfied where the hirer retains merely the right to become so involved, ‘actual exercise’ requires that the hirer in fact involve itself, such as through direction, participation, or induced reliance. [Citations.]” (<i>Ibid.</i>) “ ‘Affirmative contribution’ means that the hirer’s exercise of retained control contributes to the injury in a way that isn’t merely derivative of the contractor’s contribution to the injury. [Citation.]” (<i>Sandoval, supra</i>, 12 Cal.5th at p. 277.) “Where the contractor’s conduct is the immediate cause of injury, the affirmative contribution requirement can be satisfied only if the hirer in some respect induced – not just failed to prevent – the contractor’s injury-causing conduct. [Citations.]” (<i>Ibid.</i>) “It is not enough for the hirer’s exercise of control to incidentally give the hirer the opportunity to prevent the contractor’s injury-causing conduct. [Citation.]” (<i>Ibid.</i>) “A hirer’s conduct also satisfies the affirmative contribution requirement where the hirer’s exercise of retained control contributes to the injury independently of the contractor’s contribution (if any) to the injury. [Citations.]” (<i>Ibid.</i>) “Importantly, neither ‘actual exercise’ nor ‘affirmative contribution’ requires that the hirer’s negligence (if any) consist of an affirmative act. The hirer’s negligence may take the form of any act, course of conduct, or failure to take a reasonable precaution that is within the scope of its duty under Hooker. [Citations.]” (<i>Ibid.</i>) “If a plaintiff provides that the hirer actually exercised retained control in a way that affirmative contributed to the contract worker’s injury, the plaintiff establishes that the hirer owed the contract worker a duty of reasonable care as to that exercise of control,” and “[t]he Privette doctrine does not bar liability. [Citation.]” (<i>Sandoval, supra</i>, 12 Cal.5th at p. 278.) Here, the scope of work for SPS was for the dealership and the dirt lot where Plaintiff was attacked. (Plaintiffs’ Additional Material Facts, No. 54; Ex. 3 to Plaintiffs’ Index of Evidence, Deposition of Michael Bailey, 31:1-19.) As set forth above, Premier retained control over the dirt lot and the holes in the fence in the dirt lot by making attempts to repair them and
--	--	---

		close the holes with zip ties, which failed. It is undisputed that on the night of the incident, July 30, 2022, Mr. Elsaey saw a shape that entered from "the broken fence, the open fence" and he was stabbed and then hit over the head and knocked unconscious. (Plaintiff's AMF, No. 24, Ex. 10 to Plaintiffs' IOE, Deposition of Amir Elsay, Vol II, 157:8-158:16; 169:11-17; 172:12-14.) Based on the above, Plaintiff presents evidence that Premier retained control over the dirt lot for which Mr. Elsaey provided security services, and negligently repaired known holes in the fence in the dirt lot which affirmatively contributed to Mr. Elsaey's attack and injuries as the attacker entered through "the broken fence." Contrary to Premier's assertion, did not exercise authority over the premises in a manner that affirmatively contributed to Mr. Elsaey's injuries. Therefore, Plaintiffs create a triable issue of fact as to whether the retained control exception to the Privette doctrine applies. Premier's motion for summary judgment on the ground that the Plaintiffs' claims are barred by the Privette doctrine is DENIED. In light of the foregoing, the Court need not address Plaintiffs' additional arguments that other, independent exceptions to the Privette doctrine, including the negligent furnishing of unsafe equipment, and concealed hazard, apply. <i>Plaintiffs' to give notice.</i>
112	Yasuda vs. Pacific Life Insurance Company, 25-01451322	Defendant Pacific Life Insurance Company ("Defendant") moves to compel Plaintiff Gary Yasuda ("Plaintiff") to provide further responses to Form Interrogatories and Requests for Production, and for a further document production. Defendant also seeks monetary sanctions against Plaintiff and his counsel, Stephen Shuman, Walter Lack, and Engstrom Lipscolm & Lack, LLC, jointly and severally, in the amount of \$4,329.00. Based on the representations of the parties, the motion is now MOOT as to Form Interrogatories and all Requests for Production except for Nos. 34, 71, 72, 73. Sanctions also remain at issue. Pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(1), a motion brought pursuant to this section "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., §2031.310, subd. (b)(1).) "Good cause" for production of documents may be established where it is shown that the request is made in good faith and that the documents sought are relevant to the subject matter and material to the issues

		in the litigation. (<i>Associated Brewers Distributing Co. v. Superior Court</i> (1967) 65 Cal.2d 583, 588.) Once good cause is shown, the burden shifts to the objecting party, to justify his objections. (<i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) Here, Defendant has shown good cause for the requested discovery because each request for production seeks documents and things supporting allegations set forth in the Complaint. Plaintiff failed to meet his burden of justifying the objections, as Plaintiff did not address his objections at all. Accordingly, the motion is GRANTED as to requests Nos. 34, 71, 72, 73. Plaintiff shall produce further verified responses as well as the applicable production within 20 days. Plaintiff Gary Yasuda and his counsel, Stephen Shuman, Walter Lack, and Engstrom Lipscomb & Lack, LLC, are ORDERED, jointly and severally, to pay sanctions in the reduced amount of \$2,500.00 (5 hrs at \$500/hr). (Code Civ. Proc., § 2031.310, subd. (h).) Sanctions are to be paid within 30 days to Defendant's counsel. <i>Defendant to give notice.</i>